

Notice: The initial centralized Two-Step Open Spiral will be posted with the CSO announcement to provide Industry an avenue to submit innovative solutions in alignment with the broadly defined AOIs at any given time. In the future, Technical Directorates/Mission Organizations may issue decentralized Spirals to narrow the area of interest, address mission/funding priorities, and set expectations for proof of concept vs. turnkey solutions. Potential offerors will be afforded the opportunity to engage, through Industry days and/or Q&A sessions, to address those requirements at that time.

You may continue to direct questions regarding the CSO and centralized Open Spiral to: afrl.cso.mailbox@us.af.mil. Utilized the email subject line: “AFRL CSO General Question(s)”.

Questions that were submitted in response to the Draft announcement continue to be vetted and considered for future amendments and Spirals.

QUESTION/COMMENT	RESPONSE
COMMUNICATION	
Offerors are responsible for monitoring SAM.gov for any amendments with no proactive notification option.	Interested parties have the ability to “FOLLOW” the announcement within SAM.gov to obtain notifications.
Recommend AFRL conduct an Industry Day/Ask Anything Session in which you compare/contrast occasions when/how Technical Directorates will utilize enterprise vehicles.	A future Industry Day, or equivalent outreach, is anticipated as there are future enterprise solicitations/vehicles anticipated (e.g. Broad Agency Announcement (BAA), Advanced Research Announcement (ARA)).
Does AFRL PK have a mechanism in mind (i.e. CSO Industry Days, 1-on-1’s, etc.) to communicate its gaps in capabilities and/or technical priorities across the 56 Areas of Interest that would constitute AFRL’s top funding priorities?	Industry Days may also be conducted in advance of decentralized closed spirals.
What mechanism is available preceding the CSB to provide company overview information including the company's technical approach to prototype development?	Topics will not be pre-qualified; however, questions that are technical in nature can be directed to technical lead(s). At this time, offerors are advised to email afrl.cso.mailbox@us.af.mil .
FAR/DFARS REFERENCES	
References to DFARS 252.219-7996 and 252.219-7997 appear to be unusual clause numbers.	The CSO announcement package includes references to new or updated regulations resulting from the Revolutionary FAR Overhaul (RFO). See: https://www.acquisition.gov/far-overhaul/far-part-deviation-guide This is indicated by “DEVIATION” and/or mappings which have been added for clarity. Example Mappings: - Legacy FAR 6.203 is now RFO 6.102-3 - Legacy DFARS 209.104 is now R-DFARS 209.104 See also: DFARS FAR Overhaul Class Deviations and DAF RFO Clause Matrix
ENTERPRISE SOLICITATION METHODS	
The CSO domains and areas of interest match the recent domains and areas of interest in the Air	Both are mechanisms for AFRL to streamline its acquisition processes and fulfill requirements across the enterprise areas of

Force Research Laboratory (AFRL) Multiple Award Contract (MAC) Indefinite Delivery Indefinite Quantity (IDIQ) solicitation (FA8652-26-R-0001). Will the Government provide information about its reasons for pursuing these parallel acquisitions and its intended criteria for determining whether to use the IDIQ (TOs) or the CSO (Spirals) for its requirements? What is the difference between the two and can a company reply to both?	interest. These are “tools in the toolbox” if you will. The primary differences are solicitation authorities, authorized award types, and eligibility. Multiple award contracts (MAC) such as the AMAC are solicited using FAR Part 15 methods to establish a pool of awardees, each of which will receive a FAR-based indefinite delivery/indefinite quantity (IDIQ) contract. Only those within the pool are eligible to compete, on a FAR Part 16 fair opportunity basis, for future task orders. The AMAC is intended to fulfill Science and Technology (S&T) requirements across the AOIs. The Enterprise CSO is modeled after a Broad Agency Announcement (BAA) to streamline the acquisition process to fulfill R&D requirements across the AOIs with “innovative” solutions. Acquired supplies/services are treated as commercial items, absent the requirement for a commercial item determination; therefore, this mechanism enables use of streamlined acquisition procedures. Further, it encourages participation with nontraditional contractors that may otherwise be unwilling to do business with the government. Resultant awards are limited to fixed price FAR-based contracts or Other Transactions for Prototype (OTP). Additionally, the enterprise CSO allows for Open Spirals that afford Industry an avenue to submit a CSB for innovative solutions at any given time during the open period. As is explained in the CSO, decentralized/Closed Spirals will narrow the area of interest for specific requirements/mission priorities and require submission by a specified time.
Per DAU, CSOs seek innovative, commercial, or non-developmental items to solve problems. Is the intent for this CSO to have no developmental work? What are the expected TRLs/MRLs for efforts on this CSO?	A CSO may be used to fulfill requirements for R&D, ranging from advanced component development through operational systems development. When using a CSO to acquire R&D, the CO shall use the procedures in R-DFARS 212.70 with RFO-Part 35 and D-DFARS part 235.
SPIRALS	
Is there an anticipated time frame for the initial spiral release(s)? Does AFRL have anticipated AOI(s) for these initial spirals?	The initial centralized Open Spiral will be posted with the Enterprise CSO Announcement. There is no known timeline for the issuance of decentralized Spirals at this time.
Clarify if offerors should propose OTP vs. FAR contract or if Government decides. For solutions proposed under 10 USC 4022, will AFRL provide guidance within spiral releases regarding preferred structuring (e.g. cost share expectations, follow-on production intent, prototype definition boundaries).	While the DFARS does not speak to the ability to award OTPs, the underlying statute (10 USC 4022) does; therefore, there is the potential to award an OTP as a result of the CSO, as is stated in the announcement. If a Technical Directorate/Mission Organization is only interested in the award of an OTP, the CSO is not the appropriate solicitation method. Once an award decision is made, and the Government determines an OTP is the appropriate award instrument, and the criteria for use are met, then that is the point of departure from the FAR. While the decentralized Spirals should provide additional fidelity, a significant departure from the criteria outlined in CSO Section 11 is not anticipated.

Will AFRL provide additional guidance in Spiral releases to identify mission priority challenges? Will future Spiral announcements identify desired prototype durations, or target Technology Readiness Levels (TRLs) to assist Industry in right-sizing proposed efforts?	This is not anticipated for the initial centralized Open Spiral. Offerors should anticipate this type of information to be defined in the decentralized Spirals.
ELIGIBILITY - OFFERORS	
Will any Spirals (centralized or decentralized) be restricted to holders of other AFRL contract vehicles (e.g., AMAC/MAC IDIQ), or are Spirals expected to be fully open unless a Spiral explicitly states otherwise?	Eligibility to participate in the CSO is not affected by whether or not a contractor holds a multiple award contract, such as the AMAC. While there is a focus on nontraditional defense contractors and small businesses participation, there is no limitation on large business participation, and set-asides are not anticipated. However, please refer to Section 11 of the CSO which outlines additional eligibility requirements for OTPs. Nontraditional contractor means an entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation by the DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards (CAS) prescribed pursuant to section 1502 of title 41 and the regulations implementing such section.
Can a sole small business qualify for an OTP under 10 USC 4022(d)(ii) without a nontraditional defense contractor partner? Please clarify and/or confirm that the 1/3 cost-sharing requirement does not apply to a non-traditional defense contractor or a non-profit research institute, per 10 USC 4022.	Refer to Section 11 of the Enterprise CSO regarding 10 USC 4022(d) eligibility criteria: i. There is at least one nontraditional defense contractor or nonprofit research institution participating to a significant extent in the prototype project; or ii. All significant participants in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under Section 9 of the Small Business Act (15 U.S.C. 638)) or non-traditional defense contractors; or iii. At least one-third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government; or iv. The Senior Procurement Executive for the agency determines, in writing, that exceptional circumstances justify the use of a transaction that: a) Provides for innovative business arrangements or structures that would not be feasible or appropriate under a contract; or

	b) Would provide an opportunity to expand the defense supply base in a manner that would not be practical or feasible under a contract.” Additionally, note that “significant extent” is not defined in the statute. It can include but is not limited to: participation causes a material reduction in the cost or schedule; participation causes an increase in the performance of prototype; the performer is responsible for a new key component, technology, or process on the critical path; the performer is accomplishing a significant amount of the effort. The focus of the analysis is <u>not</u> the amount of money the performer is getting.
Is there interest in a solution that has been engineered outside of the US and requires support from non-US persons?	Refer to language at Sections 11 and 12. <i>Foreign person</i> means any natural person who is not a lawful permanent resident as defined by 8 U.S.C. 1101(a)(20) or who is not a protected individual as defined by 8 U.S.C. 1324b(a)(3). It also means any foreign corporation, business association, partnership, trust, society, or any other entity or group that is not incorporated or organized to do business in the United States, as well as international organizations, foreign governments, and any agency or subdivision of foreign governments (e.g., diplomatic missions).
Are there specific goals or incentives for small business participation in this solicitation?	Insofar as set-asides are concerned: no. Small business subcontracting goals apply IAW RFO-19.109 and 52.219-9.
ELIGIBILITY - SOLUTIONS	
Is it acceptable to only respond one Area of Interest; alternatively, if a proposed solution applies to more than one Area of Interest, can we identify multiple AOIs in a single CSB submission or are we required to submit a separate CSB for each AOI? Is it allowable for multiple technology solutions to be captured within one white paper submission? Can multiple technology solutions be integrated into a system level technology solution/prototype within one white paper submission? Clarify whether the Cyberspace and EW AOIs may be addressed in separate, focused CSBs, or whether a combined cross-domain solution is required. Are more than one CSB submissions allowed?	For submissions under the centralized Open Spiral, an offeror can submit a CSB for any single, or multiple, AOI(s). There is no explicit requirement for cross-domain solutions. The CSB Template requires the title page to identify the AOI(s) to which the proposed solution aligns. It is ultimately up to the offeror to decide which approach is best-suited for the submission (i.e. combined vs. separate). The CSO Open Spiral states there is no limit to the number of CSBs any one offeror may submit. If an offeror submits multiple CSB's, each must provide a unique approach. An offeror that receives a “not selectable” categorization is not restricted from submitting a revised CSB during the centralized Open Spiral submission period. The revised CSB is treated as a new submission and evaluated IAW with the Open Spiral criteria.
Will offerors who submit in the Cross-Domain Technologies AOI be evaluated by a single AFRL directorate, or will their CSB be routed to multiple directorates for review? How will multi-domain solutions that span more than one AOI be handled? Include in the final CSO a brief description of the internal routing and evaluation process for multi-domain CSBs, and confirm whether an offeror may designate a primary and secondary AOI.	Under the centralized Open Spiral, CSB submissions that identify Cross-Domain solutions will be routed to the Technical Directorates/Mission Organizations across those domains. It is not a requirement for the offeror to designate a primary/alternate, but it is also not prohibited. A routing/evaluation process will not be provided in the announcement package.

Under the definition of “innovative” in 10 USC 3458, will AFRL consider novel integration of mature technologies into new mission architectures even if component technologies are commercially established? Will you consider a technology that is evolutionary that does not currently exist today as "new"? We have a technology that was previously funded by AFRL that was not developed beyond TRL 3. This technology is now critically needed.	“Innovative means (a) Any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or (b) Any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date. “New” is not defined in the statute. If it is determined that the solution is a new and innovative way to fill a gap or capability (i.e., it is any new application of an existing technology, process or method as of the proposal date), then it may be procured via the CSO.
"Meets the definition of a prototype;" Is this a "prototype project" as defined in 10 USC 4022? Or is there a different definition that can be provided?	Section 11 is edited to clarify “prototype project.” There is no definition for “prototype project” in the statute, however, it may include proof of concept, model or process, including a business process; reverse engineering to address obsolescence; a pilot or novel application of commercial technologies for defense purposes; agile development activity; creation, design, development or demonstration of a technical or operational utility; or a combinations of the above.
The solution must be a prototype, but it also needs to have demonstrated mission effectiveness? Could a TRL range be added here for clarity?	Section 11 has been edited to align (b) with the statute/DoD Other Transactions Guide: <i>a. Meets the definition of a prototype project;</i> <i>b. Directly relevant to enhancing mission effectiveness;...</i> This includes enhancing the mission effectiveness of personnel of the DoD; or improving platforms, systems, components or materials proposed to be acquired or developed by the DoD; or to improvement of platforms, systems, components, or materials in use by the armed forces.
Will there be an opportunity to for classified projects?	At this time, any offeror considering submitting a CSB under the centralized Open Spiral that contains classified information is advised to reach out to the CO at afrl.cso.mailbox@us.af.mil for guidance.
SUBMISSION INSTRUCTIONS/FORMATting/CONTENT	
The draft CSO does not specify a maximum page count for the Step 1 Commercial Solutions Brief (CSB). What is the expected or maximum page limit for the CSB? A defined page limit is critical for offerors to scope their investment in preparing the submission. Page limitations and formatting requirements will be identified in Spiral or Request for CSP creates uncertainty during CSB preparation. Recommendation: Provide typical page ranges for CSP Technical Proposals in Enterprise CSO (e.g., typically 15-25 pages) to help offerors scope their responses appropriately.	The formatting and page limit restrictions for CSB (brief and white paper) are identified in the CSB Template (CSO Attachment 2). The CSO Announcement serves as the overarching enterprise announcement, providing the general framework for the issuance of future Spirals. The CSB and CSP templates apply to Spirals unless otherwise stated in the Spiral. The initial centralized Open Spiral does not deviate and defers to these templates and the instructions contained therein. Future Spirals, particularly decentralized Closed Spirals, may deviate from this templates as requirements necessitate. In those cases, the Spirals will provide formatting/submission instructions.

Will you clarify when Appendix 3 is supposed to be filled out and submitted and how it/if it will be evaluated? It is not specifically referenced in Att 3 CSP Template, nor are personnel qualifications. However, Att 4 (p. 1, lines 26 and 31) states it is required at proposal submission. Additionally, based on Att 2 (p. 3, line 38) CSB Template, which states, "Do not include corporate or personnel qualification....," we believe Appendix 3 would only be relevant to a Two-Step Spiral if an offeror is invited to move forward to Step-Two. If that is correct, we recommend a clear statement to that effect.	Refer to CSO Section 11, Science and Technology Protection (S&TP), and CSO Attachment 4, AFRL Solicitation Language for Security Risk Review. The CSP Template, section 5(b), indicates S&TP Appendices 2-4 are to be submitted as part of the proposal (CSP). This would occur at either Step-One of a One-Step Closed Spiral, or when an offeror is invited to progress to Step Two of a Two-Step Spiral (Open or Closed). Appendix 3 is utilized in the S&T Protection evaluation as explained in CSO Section 11 and Attachment 4.
The headers on pages 2 and 3 of Appendix 3 state "Research and Related Senior / Key Person Profile – FAR-Based Contracts." If an offeror is proposing a non FAR-Based Other Transactions for Prototype (OTP) (allowed per Att 3, p. 1, line 26), is Appendix 3 not required?	It applies to both FAR-based contracts and OTPs. The header has been corrected. Please also see the response under Spirals, above.
Large businesses must submit subcontracting plan with their proposal but at CSP stage, subcontracting details may not be fully developed, especially for Two-Step Spirals where technical approach is still being refined. Recommendation: For Two-Step Spirals, allow submission of subcontracting plan within 5 business days of CSP request (gives time to engage subs after selection), OR require only high-level approach in CSP with detailed plan after selection but before award.	In the case of One-Step Spirals, the CSP (proposal) is not submitted until requested by the Contracting Officer via the Step-Two Request for CSP. The request will indicate the CSP submission deadline, which should afford the offeror sufficient time to develop the proposal documentation, to include the subcontracting plan. In the case of One-Step Spirals, the Spiral instructions will indicate the CSP submission deadline, which should afford the offerors sufficient time to develop the proposal documentation, to include the subcontracting plan.
A CSB shall only be submitted under this Centralized Open Two-Step Spiral if there are no other active open or closed Decentralized Spirals available. Issue: Creates confusion - how does an offeror know about closed Spirals they were not invited to? Recommendation: Revise to: Offerors shall first check SAM.gov for active Decentralized Spirals in their technical area. If a relevant Decentralized Spiral exists, submit under that Spiral rather than the Centralized Open Spiral. Provide a reference table or link showing active Decentralized Spirals by AOI.	A Spiral tracker will be posted under the CSO announcement and updated with issuance of each Spiral. It will be incumbent upon offerors to check the announcement for active/relevant Spirals and direct submissions accordingly. Additionally, the Open Centralized Spiral language has been edited to: "This Centralized, Open Two-Step Spiral shall not be used to circumvent a Decentralized Spiral issued by a Technical Directorate. A CSB submission that the Contracting Officer determines to be duplicative with, or submitted in lieu of, a Decentralized Spiral submission will not be considered for award."
Asking for recent purchase prices is going to be the exception for an applicant to an AFRL program which is mostly for early TRL level items. I'd bet the vast majority of cost breakdowns you get if you request that info will be material costs and labor estimates since it's so hard to know how much work goes into these early TRL efforts, some of which will fail to mature. <i>Cont'd on next page.</i>	R-DFARS 212.204 (legacy 212.209) requires agencies to conduct or obtain market research to support the price reasonableness determination; it does not preclude the CO from requiring the contractor to supply information that is sufficient to determine reasonableness of price, and that includes other relevant information regarding the basis for price or cost, including uncertified cost data such as labor costs, material costs and other direct and indirect costs.

For innovative solutions, there may be no market comparisons. Creates uncertainty for pricing strategy. Recommendation: Add guidance specific to innovative solutions: For novel technologies without market comparables, offerors should provide detailed basis of estimate including labor categories, materials, overhead rates, and technical assumptions. Clarify if AFRL has ROM expectations by AOI or technology maturity level. Clarify if cost comparison between offerors is used (competitive range) or strictly market-based.	See above.
Critical Issue: Current process - Offeror submits CSP (significant investment), CSP categorized as Selectable, THEN S&TP review conducted, Award may be declined based on S&TP (Attachment 4, Para II(a)(3)). This means offerors can invest significant resources, be selected, then declined for security reasons. Recommendation: Option A - Conduct preliminary S&TP screening at CSB stage for Centralized Spirals, OR Option B - Clearly state S&TP review occurs before CSP request not after, OR Option C - Add language allowing offerors with concerns to request preliminary S&TP consultation prior to CSB submission.	The matter is not limited to Two-Step Spirals; it applies to One-Step Spirals where only CSPs are requested/submitted as well. The S&TP review is conducted upon receipt of the CSP for those CSPs determined Selectable. Concerns should be directed to the Contracting Officer identified in the Spiral.
EVALUATION/TIMELINES	
Only two factors listed (Technical Merit and Applicability, Funding Availability) for the CSB evaluation. No weighting or sub-criteria provided. Recommendation: Add sub-criteria for Technical Merit and Applicability: Innovation level (new technology vs. new application), Technical feasibility and maturity, Alignment with AOI definitions, Potential military and dual-use impact. Clarify if Funding Availability is pass/fail or scored relative to cost. The CSP evaluation factors are of equal importance. Concern: Seems counterintuitive - should Technical Merit truly be equal to Funding Availability? Recommendation: Consider weighted approach: Technical Merit (40%), Importance to Agency Programs (30%), Price (20%), Funding Availability (10%), OR clarify that equal importance means all factors must be acceptable but final selection is based on best value.	Use of a Two-Step process saves the Government and Industry resources and is a recommended approach when a large number of submissions is anticipated. The CSB evaluation criteria is limited for this reason, and particularly applicable for the centralized Open Spiral. The CSP evaluation criteria complies with R-DFARS 212.70 and will not be otherwise changed for the open spiral. (a)(3) Describe the evaluation factors for selecting proposals to include— (i) Technical and importance to agency programs as the primary evaluation factors; (ii) Price to the extent appropriate, but at a minimum to determine that the price is fair and reasonable; and (iii) Relative importance of the factors, and the method of evaluation; For the Open Spiral, equal importance is appropriate. Closed Spirals may indicate alternative weighting and will be defined in the Spiral.
No indication of how long evaluation takes for either CSB or CSP, creating planning uncertainty. Recommendation: Add to Section 9: The Government will endeavor to complete CSB evaluations within 60 days of submission and CSP evaluations within 90 days. Offerors will be notified if additional time is required.	This cannot be accurately predicted for the centralized Open Spiral; however, a default timeline of 180 days has been added. Closed Spirals should indicate alternative, condensed, timelines.

FUNDING	
The Government may incrementally fund any or all awards with no guidance on typical increment size, frequency, or offeror obligations if increments are not funded. Recommendation: Add: Typical increments align with fiscal year boundaries. Offerors should structure SOW tasks to accommodate potential incremental funding with logical stopping points. Clarify if this affects pricing strategy (should offerors propose by increment?). Can the government provide more clarity on the anticipated funding levels for this solicitation? Are there any specific budgetary constraints or ceilings for individual awards?	The expectation is that decentralized Spirals will provide this fidelity. However, it is not feasible for the centralized Two-Step Open Spiral given the budget/funding cycle differences across the Technical Directorates/Mission Organizations. That is, at least until Step Two; the Step-Two Request for CSB may provide additional clarity regarding funds availability and SOW/CLIN structure.
If a CSB or CSP is categorized as Selectable but not awarded under the CSO due to lack of funding, would the offeror be able to pursue a sole source award if they identified a funding customer (since competition/evaluation would have already taken place)? “Importance to Agency Programs” is a CSP evaluation factor. If an offeror has an identified USAF/DoD stakeholder interested in adoption and/or willing to contribute funding, is there a preferred mechanism to reflect that in the CSP (and will it be considered in evaluation)?	There is nothing that specifically precludes the offeror from identifying interested parties within the CSB/CSP submissions. If the organization is outside of AFRL, a Memorandum of Agreement (MOA) may be required between the agencies; the CSO/Spirals is an AFRL announcement/solicitation. An alternative approach: See RFO-15.5 Unsolicited Proposals.
DATA RIGHTS	
For solutions with existing patents or commercial IP, will AFRL limit data rights acquisition solely to the incremental government-funded work? Will AFRL confirm that SW developed at private expense and integrated into prototype solutions will be protected under commercial data rights consistent with DFARS 227-7990, with only GPR or limited rights negotiated as necessary? The data rights will be negotiated at the contract or OTP level creates uncertainty making it difficult for companies to decide what IP to propose, especially for commercial products with existing customer base. Recommendation: Provide AFRL typical data rights stance by scenario: Scenario A - COTS adaptation leads to Limited rights expected; Scenario B - Government-funded development leads to Government Purpose Rights expected; Scenario C - Mixed funding leads to Negotiable based on cost share. Reference DFARS 252.227-7990 earlier in process. Add Appendix with data rights assertion template or examples.	Contracting Officers must treat products and services acquired using a CSO as commercial products or commercial services. As stated in the CSO Announcement, it is the Government’s intention to acquire only technical data, computer software and computer software documentation data rights necessary to satisfy agency needs; this includes acquiring commercial software or commercial computer software documentation under licenses customarily provided to the public (unless the licenses are inconsistent with Federal procurement law or do not satisfy agency needs). Awards are subject to DFARS 252.227-7990 and 252.227-7989, or equivalent. Please review the clause language here: DFARS FAR Overhaul Class Deviations Terms and conditions are subject to negotiation. When requested to submit a proposal offerors will be required to identify any assertions related to the restriction, use, release or disclosure of data and/or computer software and computer software documentation that will be delivered to the Government in the course of contract/OTP performance. See referenced DFARS

	provision in the CSP template: 252.227-7992, Identification and Assertion of Use, Release, or Disclosure Restrictions (DEVIATION 2026-O0036), and the rules governing the assertions at 252.227-7989/7990. All are available here: DFARS FAR Overhaul Class Deviations
BASE SUPPORT / GOVERNMENT FURNISHED PROPERTY (GFP)	
We recommend allowing a stand-alone document to provide information on available facilities and equipment that may be used for integration and testing activities.	This is not feasible for the initial centralized Open Spiral, specifically Step-One. However, additional fidelity regarding support needs/GFP availability may be provided within a resulting Step-Two Request for CSP letter, as applicable. If the Government determines that GFP and/or other base support such as lab or network access is available for a particular Spiral, that information will be defined in the decentralized Spirals.